

U.O.Note No.314/SC.D/94-3, Genl.Admn. (SC.D) Dept., dt.07.06.1994 regarding withdrawal of prosecution in misappropriation and other vigilance cases only with advice of Vigilance Commission.

Subject Heading : Prosecution - withdrawal, only with advice of Vigilance Commission

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- Ref :
1. U.O.Note No.400/SC.D/91-1, G.A.(SC.D) Dept., dt.30.03.91.
 2. G.O.Ms.No.368, G.A.(SC.D) Dept., dt.29.06.93.

Instructions were issued in the U.O.Note 1st cited regarding sanction of prosecution against Government Servants involved in Corruption Charges (i.e., in Anti-Corruption Bureau cases). It was also mentioned therein that whenever it is proposed to reconsider the cases of prosecution already sanctioned in Anti-Corruption Bureau cases, the views of the Anti-Corruption Bureau have to be obtained before a decision is taken by the Government.

2. The Vigilance Commission that existed prior to its abolition in 1983, was revived in the G.O. 2nd cited, and the Commission started functioning with effect from 30.06.1993. The Vigilance Commission is an apex organisation to help the Government in its vigilance activities.

3. The withdrawal of prosecution in cases of misappropriation comes under the ambit of vigilance. Hence, it is considered that in all cases of vigilance which include the cases of withdrawal of prosecution in misappropriation cases, no prosecution shall be withdrawn without the advice of the Vigilance Commissioner.

4. All the Departments of Secretariat, are, therefore, requested to see that whenever it is proposed to reconsider the cases of vigilance which include the cases of withdrawal of prosecution in misappropriation cases, no prosecution is withdrawn without the advice of the Vigilance Commissioner.